

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Mleczkowski	Team: Squad #15	CCRB Case #: 201406321	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 05/31/2014 6:00 AM	Location of Incident: § 87(2)(b) and the 122nd Precinct stationhouse	18 Mo. SOL 11/30/2015	Precinct: 122
Date/Time CV Reported Tue, 06/24/2014 1:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 06/24/2014 1:02 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Mirel Hoxha	17705	941916	122 PCT
3. An officer			Unknown
4. SGT Angel Melendez	03315	937088	INT CIS
5. SGT Michael Dannecker	01425	923735	123 DET
6. An officer			Unknown
7. An officer			122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Caralynn McGurk	09755	942147	122 DET
2. DT3 Paul Melendez	06997	935304	122 DET
3. POM James Galante	14451	944579	122 PCT
4. SGT Ifthgar Fazal	01084	930128	122 PCT
5. DT3 Fortunat Tranchina	00509	920907	122 DET

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Staten Island.	A . Exonerated
B . POM Mirel Hoxha	Force: At § 87(2)(b) in Staten Island, PO Mirel Hoxha struck § 87(2)(b) with a gun.	B . Unsubstantiated
C . POM Mirel Hoxha	Abuse: At § 87(2)(b) in Staten Island, PO Mirel Hoxha threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . SGT Angel Melendez	Abuse: At § 87(2)(b) in Staten Island, Sgt. Angel Melendez refused to show a search warrant to § 87(2)(b)	D . Unsubstantiated
E . An officer	Discourtesy: At § 87(2)(b) in Staten Island, an officer spoke rudely to § 87(2)(b)	E . Officer(s) Unidentified
F . SGT Michael Dannecker	Abuse: At § 87(2)(b) in Staten Island, Sgt. Michael Dannecker authorized the strip-search of § 87(2)(b)	F . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
G . POM Mirel Hoxha	Abuse: At § 87(2)(b) in Staten Island, PO Mirel Hoxha searched the vehicle in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . POM Mirel Hoxha	Abuse: At § 87(2)(b) in Staten Island, PO Mirel Hoxha refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . An officer	Abuse: At § 87(2)(b) in Staten Island, an officer refused to provide his name to § 87(2)(b)	I . Officer(s) Unidentified
J . An officer	Abuse: At the 122nd Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	J . Officer(s) Unidentified
K . SGT Angel Melendez	Discourtesy: At § 87(2)(b) in Staten Island, Sgt. Angel Melendez spoke discourteously to § 87(2)(b)	K . Unsubstantiated

Case Summary

On May 31, 2014, at 6 a.m., officers from the 122nd Precinct and 122 Detective Squad executed a no-knock search warrant at § 87(2)(b) in Staten Island (**Allegation A**). § 87(2)(b) was in her bedroom and attempted to look for her glasses when PO Mirel Hoxha of the 122nd Precinct allegedly pushed her in the left shoulder with the butt of his rifle (**Allegation B**) and told her “If you move one more time, we’re gonna shoot you” (**Allegation C**).

The officers never showed § 87(2)(b) a search warrant, despite her alleged repeated requests to see one (**Allegation D**). § 87(2)(b) pulled into the driveway of § 87(2)(b) and officers then pulled him out of his vehicle and placed him on the ground, where they handcuffed him. An officer, who remains unidentified (PO1), allegedly told other officers “Get him the fuck out of here” and called § 87(2)(b) a “piece of shit” (**Allegation E**). Multiple officers, who remain unidentified, allegedly pulled down § 87(2)(b)’s pants and boxers and touched his front and back private regions (**Allegation F**). PO Hoxha allegedly searched § 87(2)(b)’s vehicle (**Allegation G**).

While § 87(2)(b) was being transported to the 122nd Precinct stationhouse, PO Hoxha and an officer, who remains unidentified, allegedly failed to provide their names to § 87(2)(b) upon his request (**Allegations H and I**). § 87(2)(b) requested medical attention at the 122nd Precinct but she was not provided with any (**Allegation J**). While in the holding cell, Sgt. Angel Melendez of the Intelligence Division allegedly told § 87(2)(b) “I don’t want your piece of shit jewelry” (**Allegation K**). § 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was ineligible for mediation due to § 87(2)(b)’s and § 87(2)(b)’s arrests.

As of April 3, 2015, which is past the 90-day filing deadline, § 87(2)(b) and § 87(2)(b) had not filed a notice of claim in regards to this incident (encl. L21).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. B4-B5). § 87(2)(b)
- PO Hoxha has been a member of the service for eight years and there are no substantiated allegations against him. § 87(2)(g)
- Sgt. Melendez has been a member of the service for ten years and this is the first CCRB case filed against him (encl. B2).

Attempts to Contact § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) § 87(2)(b) -old daughter witnessed this incident; however they declined to provide any contact information for her. On March 25, 2015, a Lexis Nexis database search revealed that § 87(2)(b) also lives in § 87(2)(b). A telephone number was not listed for her on these results, however the undersigned investigator mailed and e-mailed please call letters to the mailing and e-mail addresses listed for her on March 25 and April 3, 2015. Neither of the letters mailed to § 87(2)(b) have been returned to the CCRB by the United States Postal Service as of the date of this report. Additionally, § 87(2)(b) has not contacted the CCRB in order to provide a telephone or sworn statement.

Finding and Recommendations

Identification of Subject Officer

Multiple officers collectively executed a valid search warrant at § 87(2)(b) § 87(2)(g)

§ 87(2)(b) described the officer who struck her with a rifle and threatened to shoot her as a white man, who she believed to be Albanian due to his accent, 5'6" tall, bald, with a small build and 150 pounds. § 87(2)(b) identified PO Hoxha as the subject officer of this allegation during her photo array viewing. PO Hoxha also confirmed that he is Albanian.

§ 87(2)(g)

§ 87(2)(b) repeatedly requested to see a search warrant at § 87(2)(b) and Sgt. Melendez stated that he showed § 87(2)(b) the search warrant upon her request. Since Sgt. Melendez was a supervisory officer at § 87(2)(b) and admitted that he showed § 87(2)(b) the search warrant, § 87(2)(g)

§ 87(2)(b) described the officer who spoke rudely to her as a Hispanic man, 5'10" tall, 250 pounds and 45 years old and identified Sgt. Melendez in a photo array. Sgt. Melendez was the only Hispanic officer at the scene. § 87(2)(g)

§ 87(2)(g)

During his initial telephone statement on June 25, 2014, he could not provide descriptive information about the officers, although he noted that he only white, male officers, all of whom were under 6' and wearing suits with ties were present. During his CCRB interview on November 6, 2014, he was solely able to describe PO Hoxha and described the additional officers as wearing SWAT gear, with helmets and vests, while some officers wearing plain clothes but could not provide any more descriptive information. During telephone statements on November 25, 2014, and on March 24, 2015, 10 months after the incident date, § 87(2)(b) provided detailed descriptions of the officers who searched his vehicle and used profanity against him. During his photo array conducted on June 2, 2015, § 87(2)(b) solely identified PO Hoxha as being present during the incident. § 87(2)(g)

§ 87(2)(g)

PO Hoxha admitted that he searched § 87(2)(b)'s vehicle from the onset of his arrival at the scene and that § 87(2)(b) requested his name. § 87(2)(g)

There was no documentation to identify the second transport officer that assisted PO Hoxha. § 87(2)(g)

It is undisputed that § 87(2)(b) requested medical attention once at the precinct. However, she could not provide a timeline when she did so and whom she directed this request to or how many times it was made. PO McGurk confirmed overhearing the request but could solely describe the officer she made this notification to as a white male desk officer. Additionally, there was no timeline during § 87(2)(b)'s four hour stay at the precinct as to when this notification was made. § 87(2)(g)

Allegation A- Abuse of Authority: Officers entered and searched § 87(2)(b) in Staten Island.

It is undisputed that officers assigned to the 122nd Precinct, 122nd Precinct Detective Squad and the Intelligence Division entered and searched § 87(2)(b) in Staten Island on May 31, 2014.

The Criminal Court of the City Of New York, County of Richmond issued search warrant number § 87(2)(b), obtained on § 87(2)(b). This search warrant was valid on the date of the incident, May 31, 2014, inside of § 87(2)(b) in Staten Island (encl. L1-L2).

As per New York State Criminal Procedure Law 690.50 (encl. A1), officers may forcibly enter and search a location, without notice, pursuant to the instructions and temporal restrictions enumerated on a valid search warrant.

Since the officers executed a valid search warrant, it is recommended that **Allegation A be Exonerated.**

Allegation B- Force: At § 87(2)(b) in Staten Island, PO Mirel Hoxha struck § 87(2)(b) with a gun.

Allegation C- Abuse of Authority: At § 87(2)(b) in Staten Island, PO Mirel Hoxha threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that upon the officers' entry, while she was in her bed, prior to being handcuffed, she attempted to look for her eyeglasses, when PO Hoxha pushed her in her left shoulder with the butt of his rifle and told her "If you move one more time, we're gonna shoot you." § 87(2)(b) was not present for this portion of the incident.

PO Hoxha denied interacting with § 87(2)(b) in her bedroom and indicated that he first interacted with her while she was in the living room handcuffed. PO Hoxha denied that he or any other officer struck § 87(2)(b) with a gun or threatened to shoot her. PO McGurk denied witnessing these allegations.

§ 87(2)(g) As such, it is recommended that **Allegations B and C be Unsubstantiated.**

Allegation D- Abuse of Authority: At § 87(2)(b) in Staten Island, Sgt. Angel Melendez refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) alleged that she repeatedly requested for officers to show her a search warrant, however they never furnished such to her. § 87(2)(b) was not present for this portion of the incident.

Sgt. Melendez confirmed that § 87(2)(b) made the request and that he showed her the search warrant. PO Hoxha also confirmed that the request was made but did not recall which officer presented the search warrant. PO McGurk and Sgt. Dannecker stated that § 87(2)(b) never requested to see a search warrant.

§ 87(2)(g) It is therefore recommended that **Allegation D be closed as Unsubstantiated.**

Allegation E- Discourtesy: At § 87(2)(b) in Staten Island, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that upon his arrival to the residence and removal from the vehicle, an officer referred to him in saying "Get him the fuck out of here" and called him a "piece of shit." None of the officers interviewed acknowledged this. As discussed in the Officer Identification Section, § 87(2)(b) was unable to describe, or identify photos from a photo array. As such, it is recommended that **Allegation E be closed as Officer(s) Unidentified.**

Allegation F- Abuse of Authority: At § 87(2)(b) in Staten Island, Sgt. Michael Dannecker authorized the strip-search of § 87(2)(b)

§ 87(2)(b) alleged that while outside of § 87(2)(b) after being handcuffed and searched, four unidentified officers pulled down his pants and boxers and touched his front and back private areas. § 87(2)(b) was not present for this portion of the incident. As discussed in the Officer Identification Section, these officers could not be identified.

However, Sgt. Dannecker confirmed that he was present for § 87(2)(b)'s arrest along with other officers and witnessed the search of his person. Sgt. Dannecker denied that he authorized or witnessed a strip-search. No documentation was prepared pertaining to a strip-search and none of the interviewed officers admitted partaking in a strip-search of § 87(2)(b).

§ 87(2)(g)

it is recommended that **Allegation F** be Unsubstantiated.

Allegation G- Abuse of Authority: At § 87(2)(b) in Staten Island, PO Mirel Hoxha searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle was searched pursuant to his arrest. § 87(2)(b) could not identify any of the officers that searched his vehicle, where they searched in the vehicle but indicated that they removed a backpack from the trunk which contained a BB gun.

§ 87(2)(b) indicated that a BB gun was found inside of § 87(2)(b)'s vehicle but did not identify where it was found in the vehicle.

PO Hoxha stated that he was the only officer to search the vehicle. He observed a firearm sitting on top of an open book bag on the passenger seat of § 87(2)(b)'s vehicle upon his arrival to the scene and removal from the vehicle. PO Hoxha entered the vehicle in order to recover the firearm and conducted a limited search of the grabbeable area. He denied that the trunk was searched. Sgt. Dannecker denied searching § 87(2)(b)'s vehicle; he stated that officers, who he could not recall, searched § 87(2)(b)'s vehicle. Sgt. Melendez and PO McGurk did not witness this portion of the incident.

§ 87(2)(b) provided two phone statements to the CCRB prior to his CCRB interview and after he pled guilty the firearm charge and never alleged the car search. His descriptions of subject officers went from none when he provided his initial three statements to great detail ten months after the incident. He has remarked that these officers have harassed him for several years and his arrest records indicate quite a number of arrests from the precinct and Detective Squad.

§ 87(2)(g)

it is recommended that **Allegation G** be Unsubstantiated.

Allegation H- Abuse of Authority: At § 87(2)(b) in Staten Island, PO Mirel Hoxha refused to provide his name to § 87(2)(b)

Allegation I- Abuse of Authority: At § 87(2)(b) in Staten Island, an officer refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that he was transported to the precinct by two unidentified officers and when he requested their names, they did not provide it and told him he could get his arresting officer's information at the precinct.

PO Hoxha stated that he transported § 87(2)(b) to the 122nd Precinct stationhouse; he did not note which officer accompanied him while en route. PO Hoxha indicated that at the stationhouse, § 87(2)(b) requested his name and shield number, which PO Hoxha verbally provided to him.

There is no documentation to identify which officers transported § 87(2)(b) to the precinct.

§ 87(2)(g)

As such, it is recommended that **Allegation H** be **Unsubstantiated** and **Allegation I** be closed as **Officer(s) Unidentified**.

Allegation J- Abuse of Authority: At the 122nd Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that as soon as she entered the stationhouse, she made requests for medical attention. § 87(2)(b) did not note when she made these requests during her 4-hour stay at the 122 Precinct, how many times she made the request, to whom she made the request and where she was at the time of the requests. She was ultimately sent to an unidentified hospital from Central Booking. The CCRB was unable to obtain the pre-arraignment screening form, identify the hospital or what treatment was obtained, if any.

PO McGurk confirmed that she overheard § 87(2)(b) make a general request for medical attention while in a holding cell to no particular officer but could not account for when this request was made during her presence at the precinct. PO McGurk was with a group of officers about a foot away. PO McGurk notified the desk officer who she could solely describe as white male and he called for an ambulance. She did not witness an ambulance respond to the scene.

The investigation identified Sgt. Fazal as being assigned as the desk officer during tour 2. Sgt. Fazal did not recall this incident and indicated that he would have called an ambulance if he was provided this information. There is no record in either the 122nd Precinct Command Log entry (encl. L9), or in the 122nd Precinct Prisoner Holding Pen Roster (encl. L10), noting any medical issue or request for an ambulance. Additionally, the command log revealed Sgt. Fazal left the desk at 9:00 a.m. to conduct stationhouse security.

§ 87(2)(g)

it is recommended that **Allegation J** be closed as **Officer(s) Unidentified**.

Allegation K- Discourtesy: At the 122nd Precinct stationhouse, Sgt. Angel Melendez spoke rudely to § 87(2)(b)

While in the holding cell, § 87(2)(b) indicated that she was screaming, cursing and yelling. She saw Sgt. Melendez, who was part of the search warrant execution team and he had seen § 87(2)(b)'s dildo's being placed on her bed. § 87(2)(b) asked Sgt. Melendez if he took a dildo home to his wife because she could use it. In response, Sgt. Melendez allegedly responded, "Do I give a shit about your bullshit jewelry?" § 87(2)(b) indicated that § 87(2)(b) was brought to the precinct after this comment. Yet § 87(2)(b) indicated that he heard the comment, and identified a different subject officer.

Sgt. Melendez and Sgt. Dannecker denied witnessing § 87(2)(b) at the 122nd Precinct. PO Galante, PO Hoxha, PO McGurk and Det. Melendez all denied hearing an officer use profanity against her at the 122nd Precinct.

it is recommended that **Allegation K** be **Unsubstantiated**.

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date